

Evidentiary Objections

The court declines to rule on the parties' evidentiary objections because the objections either go to the weight of the evidence rather than the admissibility, or are not dispositive to the motion, therefore, the court need not rule on them. (Code Civ. Proc., § 437c, subd. (a) [court need rule only on objections court deems material to its disposition].) Furthermore, Defendant fails to submit his objections in the proper format required by Rule of Court 3.1354 (filed separately, numbered consecutively, quoting the objectionable material, and clearly stating the grounds for objections).

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: SMC on 6/9/2026
(Judge's initials) (Date)

(49)

Tentative Ruling

Re: ***Highey v. Promesa Apartments***
Superior Court Case No. 25CECG05700

Hearing Date: June 10, 2026 (Dept. 501)

Motion: By Defendant Promesa Apartments on Demurrer to the Complaint

**If oral argument is timely requested, it will be entertained on
Wednesday, June 17, 2026, at 3:30 p.m. in Department 403.**

Tentative Ruling:

To continue the hearing to Wednesday July 15, 2026 at 3:30 p.m. in **Department 403** in order to allow defendant to meet and confer with plaintiffs. (Code Civ. Proc., § 430.41, subd. (a).) Defendant is to file a declaration of defendant's meet and confer efforts by July 8, 2026.

Explanation:

Defendant Fresno 1101 Parkway, LP (sued erroneously as Promesa Apartments) ("Defendant") demurs to the complaint of plaintiffs, Angela Hughey and Crystal Baker, ("Plaintiffs"). Plaintiffs did not file an opposition.

The demurring party must meet with the opposing party, in person, by telephone, or by video conference prior to filing a demurrer and file and serve with the motion a declaration detailing the meet-and-confer efforts. (Code Civ. Proc., § 430.41, subd. (a).)

Defendant's declaration states in pertinent part, "I emailed Plaintiffs a detailed letter outlining the bases for Defendant's demurrer on January 16, 2026...I state in the email and letter that the code requires a telephone call to discuss. I did not receive any response of any sort from Plaintiffs." (Burns Decl., ¶ 3.) Although an email and letter are helpful to the process, an email and letter do not satisfy the meet and confer requirement. Defendant does not indicate any attempt to call either of the phone numbers listed for Plaintiffs in the complaint or any other steps to comply with the statutorily required meet and confer requirement. Accordingly, the demurrer to the complaint is continued to July 15, 2026 at 3:30 p.m. in **Department 403** to allow Defendant to meet and confer with Plaintiffs. Plaintiffs are reminded that Plaintiffs' pro per status does not exempt Plaintiffs from complying with the rules of civil procedure. (*Nelson v. Gaunt* (1981) 125 Cal.App.3d 623, 638-639; *Monastero v. Los Angeles Transit Co.* (1955) 131 Cal.App.2d 156, 160-161.)

